

26 U.S. Code § 6413 - Special rules applicable to certain employment taxes

- [U.S. Code](#)
- [Notes](#)

[prev](#) | [next](#)

(a)Adjustment of tax

(1)General rule

If more than the correct amount of tax imposed by section [3101](#), [3111](#), [3201](#), [3221](#), or [3402](#) is paid with respect to any payment of remuneration, proper adjustments, with respect to both the tax and the amount to be deducted, shall be made, without interest, in such manner and at such times as the Secretary may by regulations prescribe.

(2)United States as employer

For purposes of this subsection, in the case of remuneration received from the United States or a wholly-owned instrumentality thereof during any calendar year, each head of a Federal agency or instrumentality who makes a return pursuant to section [3122](#) and each agent, designated by the head of a Federal agency or instrumentality, who makes a return pursuant to such section shall be deemed a separate [employer](#).

(3)Guam or American Samoa as employer

For purposes of this subsection, in the case of remuneration received during any calendar year from the

Government of Guam, the Government of American Samoa, a political subdivision of either, or any instrumentality of any one or more of the foregoing which is wholly owned thereby, the Governor of Guam, the Governor of American Samoa, and each agent designated by either who makes a return pursuant to [section 3125](#) shall be deemed a separate [employer](#).

(4) District of Columbia as employer

For purposes of this subsection, in the case of remuneration received during any calendar year from the District of Columbia or any instrumentality which is wholly owned thereby, the Mayor of the District of Columbia and each agent designated by him who makes a return pursuant to [section 3125](#) shall be deemed a separate [employer](#).

(5) States and political subdivisions as employer

For purposes of this subsection, in the case of remuneration received from a State or any political subdivision thereof (or any instrumentality of any one or more of the foregoing which is wholly owned thereby) during any calendar year, each head of an agency or instrumentality, and each agent designated by either, who makes a return pursuant to [section 3125](#) shall be deemed a separate [employer](#).

(b) Overpayments of certain employment taxes

If more than the correct amount of tax imposed by section 3101, 3111, 3201, 3221, or 3402 is paid or deducted with respect to any payment of remuneration and the overpayment cannot be adjusted under subsection (a) of this section, the amount of the overpayment shall be

refunded in such manner and at such times (subject to the statute of limitations properly applicable thereto) as the Secretary may by regulations prescribe.

(c)Special refunds

(1)In general

If by reason of an employee receiving **wages** from more than one **employer** during a calendar year the **wages** received by him during such year exceed the contribution and benefit base (as determined under section 230 of the **Social Security Act**) which is effective with respect to such year, the employee shall be entitled (subject to the provisions of section 31(b)) to a credit or refund of any amount of tax, with respect to such **wages**, imposed by section 3101(a) or section 3201(a) (to the extent of so much of the rate applicable under section 3201(a) as does not exceed the rate of tax in effect under section 3101(a)), or by both such sections, and deducted from the employee's **wages** (whether or not paid to the Secretary), which exceeds the tax with respect to the amount of such **wages** received in such year which is equal to such contribution and benefit base. The term "**wages**" as used in this paragraph shall, for purposes of this paragraph, include "compensation" as defined in section 3231(e).

(2)Applicability in case of Federal and State employees, employees of certain foreign affiliates, and governmental employees in Guam, American Samoa, and the District of Columbia

(A)Federal employees

In the case of remuneration received from the United States or a wholly-owned instrumentality thereof during

any calendar year, each head of a Federal agency or instrumentality who makes a return pursuant to section 3122 and each agent, designated by the head of a Federal agency or instrumentality, who makes a return pursuant to such section shall, for purposes of this subsection, be deemed a separate **employer**; and the term “**wages**” includes for purposes of this subsection the amount, not to exceed an amount equal to the contribution and benefit base (as determined under section 230 of the **Social Security Act**) for any calendar year with respect to which such contribution and benefit base is effective, determined by each such head or agent as constituting **wages** paid to an employee.

(B)State employees

For purposes of this subsection, in the case of remuneration received during any calendar year, the term “**wages**” includes such remuneration for services covered by an agreement made pursuant to section 218 of the **Social Security Act** as would be **wages** if such services constituted employment; the term “**employer**” includes a State or any political subdivision thereof, or any instrumentality of any one or more of the foregoing; the term “tax” or “tax imposed by section 3101(a)” includes, in the case of services covered by an agreement made pursuant to section 218 of the **Social Security Act**, an amount equivalent to the tax which would be imposed by section 3101(a), if such services constituted employment as defined in section 3121; and the provisions of this subsection shall apply whether or not any amount deducted from the employee’s remuneration as a result of an agreement made pursuant to section 218 of the **Social**

Security Act has been paid to the Secretary.

(C)Employees of certain foreign affiliates

For purposes of paragraph (1) of this subsection, the term “wages” includes such remuneration for services covered by an agreement made pursuant to section 3121(l) as would be wages if such services constituted employment; the term “employer” includes any American employer which has entered into an agreement pursuant to section 3121(l); the term “tax” or “tax imposed by section 3101(a),” includes, in the case of services covered by an agreement entered into pursuant to section 3121(l), an amount equivalent to the tax which would be imposed by section 3101(a), if such services constituted employment as defined in section 3121; and the provisions of paragraph (1) of this subsection shall apply whether or not any amount deducted from the employee’s remuneration as a result of the agreement entered into pursuant to section 3121(l) has been paid to the Secretary.

(D)Governmental employees in Guam

In the case of remuneration received from the Government of Guam or any political subdivision thereof or from any instrumentality of any one or more of the foregoing which is wholly owned thereby, during any calendar year, the Governor of Guam and each agent designated by him who makes a return pursuant to section 3125(b) shall, for purposes of this subsection, be deemed a separate employer.

(E)Governmental employees in American Samoa

In the case of remuneration received from the Government of American Samoa or any political

subdivision thereof or from any instrumentality of any one or more of the foregoing which is wholly owned thereby, during any calendar year, the Governor of American Samoa and each agent designated by him who makes a return pursuant to [section 3125\(c\)](#) shall, for purposes of this subsection, be deemed a separate [employer](#).

(F)Governmental employees in the District of Columbia

In the case of remuneration received from the District of Columbia or any instrumentality wholly owned thereby, during any calendar year, the Mayor of the District of Columbia and each agent designated by him who makes a return pursuant to [section 3125\(d\)](#) shall, for purposes of this subsection, be deemed a separate [employer](#).

(G)Employees of States and political subdivisions

In the case of remuneration received from a State or any political subdivision thereof (or any instrumentality of any one or more of the foregoing which is wholly owned thereby) during any calendar year, each head of an agency or instrumentality, and each agent designated by either, who makes a return pursuant to [section 3125\(a\)](#) shall, for purposes of this subsection, be deemed a separate [employer](#).

(d)Refund or credit of Federal unemployment tax

Any credit allowable under section 3302, to the extent not previously allowed, shall be considered an overpayment, but no interest shall be allowed or paid with respect to such overpayment.

(Aug. 16, 1954, ch. 736, [68A Stat. 797](#); Sept. 1, 1954, ch. 1206, title II, § 202(a)(1), (b)(1)–(3), [68 Stat. 1089](#), 1090; Pub. L. 85–840, title IV, § 402(d), Aug. 28, 1958, [72 Stat. 1043](#); Pub. L.

86–778, title I, § 103(r)(2)–(4), Sept. 13, 1960, 74 Stat. 940; Pub. L. 89–97, title III, §§ 317(e), (f), 320(b)(5), (6), July 30, 1965, 79 Stat. 389, 390, 393, 394; Pub. L. 90–248, title I, § 108(b)(5), (6), title V, § 502(a), Jan. 2, 1968, 81 Stat. 835, 934; Pub. L. 92–5, title II, § 203(b)(5), (6), Mar. 17, 1971, 85 Stat. 11; Pub. L. 92–336, title II, § 203(b)(5), (6), July 1, 1972, 86 Stat. 419, 420; Pub. L. 92–603, title I, § 144(c), Oct. 30, 1972, 86 Stat. 1370; Pub. L. 93–66, title II, § 203(b)(5), (6), July 9, 1973, 87 Stat. 153; Pub. L. 93–233, § 5(b)(5), (6), Dec. 31, 1973, 87 Stat. 954; Pub. L. 93–445, title V, § 502, Oct. 16, 1974, 88 Stat. 1360; Pub. L. 94–455, title XIX, § 1906(a)(23)(A), (B)(i), (ii), (C), (D), (b)(13)(A), Oct. 4, 1976, 90 Stat. 1826, 1827, 1834; Pub. L. 97–248, title III, §§ 302(c), 307(a)(10)–(12), 308(a), Sept. 3, 1982, 96 Stat. 586, 589–591; Pub. L. 98–21, title III, § 321(e)(4), Apr. 20, 1983, 97 Stat. 120; Pub. L. 98–67, title I, § 102(a), Aug. 5, 1983, 97 Stat. 369; Pub. L. 99–272, title XIII, § 13205(a)(2)(E), Apr. 7, 1986, 100 Stat. 315; Pub. L. 101–508, title XI, § 11331(d) (1), Nov. 5, 1990, 104 Stat. 1388–468; Pub. L. 103–66, title XIII, § 13207(d)(1)–(3), Aug. 10, 1993, 107 Stat. 468.)